STATE OF WASHINGTON

DEPARTMENT OF HEALTH

Olympia, Washington 98504

RE: Eric C. Welling, IMLC.MD
Master Case No.: M2023-492
Document: Default Order

Regarding your request for information about the above-named practitioner; attached is a true and correct copy of the document on file with the State of Washington, Department of Health, Adjudicative Clerk Office. These records are considered Certified by the Department of Health.

Certain information may have been withheld pursuant to Washington state laws. While those laws require that most records be disclosed on request, they also state that certain information should not be disclosed.

The following information has been withheld: **NONE**

If you have any questions or need additional information regarding the information that was withheld, please contact:

Customer Service Center
P.O. Box 47865
Olympia, WA 98504-7865
Phone: (360) 236-4700
Fax: (360) 586-2171

You may appeal the decision to withhold any information by writing to the Privacy Officer, Department of Health, P.O. Box 47890, Olympia, WA 98504-7890.

STATE OF WASHINGTON
WASHINGTON MEDICAL COMMISSION

In the Matter of the License to Practice as a Physician and Surgeon of: **ERIC C. WELLING, IMLC.MD** License No.IMLC.MD.61275435 Respondent	**No. M2023-492** **FINDINGS OF FACT, CONCLUSIONS OF LAW AND FINAL ORDER OF DEFAULT (Failure to Respond)**

This matter comes before the Health Law Judge for final order of default. Based on the record, the Health Law Judge, on designation by the Washington Medical Commission (Commission), now issues the following:

1. FINDINGS OF FACT

1.1 On February 17, 2022, the state of Washington issued Respondent a license to practice as a physician and surgeon. Respondent's license is currently summarily suspended.

1.2 The Commission has filed the Declaration of Kelly Elder, Staff Attorney, with attached exhibits.

1.3 On or about November 4, 2022, the Wyoming Board of Medicine (Wyoming Board) issued an Order of Summary Suspension (Wyoming Order) suspending Respondent's license to practice as a physician and surgeon in that jurisdiction. The Wyoming Order found Respondent failed to comply with a July 2022 order by the Wyoming Board to undergo an alcohol, substance and mental health examination. The Wyoming Order further found that Respondent underwent a neurocognitive assessment following the suspension of his clinical privileges at a hospital in Utah in September 2021 related to anesthesia charting errors but failed to comply with the assessment recommendations.

1.4 On August 4, 2023, the Commission filed a Statement of Charges alleging Respondent committed unprofessional conduct in violation of RCW 18.130.180(5).

1.5 On August 4, 2023, the Commission served Respondent with a copy of the following documents at Respondent's last known address:

A. Ex Parte Order of Summary Suspension;

B. Statement of Charges;

C. Notice of Your Legal Rights and Request for Interpreter; and

D. Answer to Statement of Charges and Request for Settlement and Hearing;

E. Ex Parte Motion for Summary Action; and

F. Declaration of Health Care Investigation in Support of Motion for Summary Action with exhibits.

1.6 The Answer to the Statement of Charges was due in the Adjudicative Clerk Office by August 24, 2023.

1. 7 On August 21, 2023, Respondent requested an extension on the Answer to the Statement of Charges. On August 28, the Adjudicative Clerk Office granted a forty-five (45) day extension on the Answer to the Statement of Charges.

1.8 On August 24, 2023, Respondent emailed additional information to the Adjudicative Clerk Office. On the same day, the Adjudicative Clerk Office notified Respondent that he needed to provide an Answer to the Statement of Charges.

1.9 To date, the Adjudicative Clerk Office has not received an answer to the Statement of Charges

1.10 The Commission has no reason to believe Respondent is now or was in active military service, or a dependent of a person in active military service at the time the Statement of Charges was served.

2. CONCLUSIONS OF LAW

2.1 The Commission has jurisdiction over Respondent and over the subject matter of this case, RCW 18.130.040.

2.2 Respondent did not file a response to the Statement of Charges within the time allowed. WAC 246-11-270(1)(a)(i) or WAC 246-11-270(3). Respondent is in default and the Commission may issue a final order based on the evidence presented, RCW 18.130.090(1) and RCW 34.05.440.

2.3 Based upon the Findings of Fact, Respondent has engaged in unprofessional conduct in violation of RCW 18.130.180(5).

2.4 Sufficient grounds exist to take disciplinary action against Respondent's license. RCW 18.130.160 and 18.130.180.

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3. ORDER

The COMMISSION ORDERS:

3.1 Respondent's license to practice as a physician and surgeon in the state of Washington is INDEFNITELY SUSPENDED.

3.2 Respondent shall immediately return all licenses to the Commission within ten (10) days of receipt of this Order.

3.3 If Respondent violates any provision of this Order in any respect the Commission may take further action against Respondent's license.

3.4 The effective date of this Order is that date the Adjudicative Clerk Office places the signed order into the U.S. mail. Respondent shall not submit any fees or compliance documents until after the effective date of this Order.

4. COMPLIANCE WITH SANCTION RULES

4.1 The Commission applies WAC 246-16-800, *et seq.*, to determine appropriate sanctions in final orders pursuant to RCW 18.180.110. WAC 246-16-800(2) and (3) require the Health Law Judge to apply sanctions based on the appropriate sanction schedule(s).

4.2 WAC 246-16-800(2)(b)(iv) provides that "indefinite suspension may be imposed in default and waiver of hearing orders." The sanction of indefinite suspension adequately addresses the facts of this case and is an appropriate sanction.

5. NOTICE TO PARTIES

This Order will be reported to the National Practitioner Data Bank (45 CFR Part 60), the Federation of State Medical Board's Physician Data Center and elsewhere as required by law. This Order is a public document. It will be placed on the Department of Health's website, disseminated via the Commission's electronic mailing list, and disseminated according to the Uniform Disciplinary Act (Chapter 18.130 RCW). It may be disclosed to the public upon request pursuant to the Public Records Act (Chapter 42.56 RCW). It will remain part of Respondent's file according to the state's records retention law and cannot be expunged.

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Either Party may file a **petition for reconsideration,** RCW 34.05.461(3); 34.05.470. The petition must be filed within **ten (10) days** of service of this Order with:

Adjudicative Clerk Office
PO Box 47879
Olympia, WA 98504-7879
ACOFax@doh.wa.gov

and a copy must be sent to:

State of Washington
Washington Medical Commission
PO Box 47866
Olympia WA 98504-7866

The petition must state the specific grounds upon which reconsideration is requested and the relief requested. The petition for reconsideration is considered denied twenty (20) days after the petition is filed if the Adjudicative Clerk Office has not responded to the petition or served written notice of the date by which action will be taken on the petition.

A **petition for judicial review** must be filed and served within **thirty (30) days** after service of this Order. RCW 34.05.542. The procedures are identified in chapter 34.05 RCW, Part V, Judicial Review and Civil Enforcement. A petition for reconsideration is not required before seeking judicial review. If a petition for reconsideration is filed, however, the thirty (30) day period will begin to run upon the resolution of that petition, RCW 34.05.470(3).

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The Order remains in effect even if a petition for reconsideration or petition for review is filed. "Filing" means actual receipt of the document by the Adjudicative Clerk Office, RCW 34.05.010(6). This Order was "served" upon you on the day it was deposited in the United States mail, RCW 34.05.010(19).

DATED: January 3, 2024.

STATE OF WASHINGTON
WASHINGTON MEDICAL COMMISSION

HEALTH LAW JUDGE

PRESENTED BY:

Kelly Elder

KELLY ELDER, WSBA NO. 51810
COMMISSION STAFF ATTORNEY

01/02/2024
DATE